



NATIONAL SECURITY AGENCY
FORT GEORGE G. MEADE, MARYLAND 20755-6000

PA Case: 108494A
2 March 2020

RESTRICTED DELIVERY

WILLIAM ENTRIKEN JR
1354 PANTHER RD
RYDAL PA 19046

Dear Mr. Entriken:

This responds to your Freedom of Information Act (FOIA)/Privacy Act (PA) request dated 7 November 2019, for a copy of all interview evaluation materials related to considering you for employment, which you later clarified to be reason(s) and documents on why your employment processing was discontinued. Your request has been processed under the provisions of the FOIA and the PA, and the documents are enclosed. Please be assured that all personal records are maintained on a strict need-to-know basis and access is limited to duly authorized personnel.

Certain information has been deleted from the enclosures because it would identify a source of investigatory material compiled to determine suitability for Federal civilian employment and access to classified information. The source furnished information to the U.S. Government under an expressed promise that the identity would be held in confidence, and therefore, disclosures of the individual's identity is exempt pursuant to 5 U.S.C. 552a, Subsection (k)(5). This same information is also exempt from disclosure under Subsection (b)(7)(D) of the FOIA.

This Agency is authorized by statute to protect certain information concerning its activities, as well as the names of its employees. Such information is exempt from disclosure pursuant to Exemption 3 of the FOIA, which provides for the withholding of information specifically protected from disclosure by statute. The specific statute applicable in this case is Section 6, Public Law 86-36 (50 U.S. Code 3605). This same information is also exempt from disclosure under the PA pursuant to the provisions of Public Law 86-36. We have determined that such information exists in these records, and we have excised it accordingly.

Certain information has been deleted from the enclosures under the (k)(6) exemption of the PA, which exempts testing or examination material used solely to determine individual qualification for the Federal Service. This information is exempted when its disclosure would compromise the objectivity or fairness of the testing or examination process.

In addition, Exemption 7 of the FOIA protects from disclosure records or information compiled for law enforcement purposes. This includes information that, if released, would reveal law enforcement techniques or procedures. We have determined that the information protected by (k)(6) in these records meets a law enforcement purpose, and thus it has been withheld under (b)(7)(E).

Also, Exemption 2 of the FOIA permits an agency to withhold information "related solely to the internal personnel rules and practices of an agency." 5 U.S.C. § 552(b)(2). The U.S. Supreme Court has limited Exemption 2 to "records relating to issues of employee relations and human resources." Milner v. Department of Navy, 131 S.Ct., 1259, 1271 (2011). NSA withheld certain information contained in the enclosures based on this exemption because it clearly relates to employee relations as the information pertains to the suitability of applicants and necessarily would involve "personnel rules and practices of an agency."

The same information protected by (k)(6), (b)(7)(E), and (b)(2) is also exempt from disclosure pursuant to Exemption 3 of the FOIA and under the PA pursuant to the provisions of Public Law 86-36, as stated above.

Since the deletions from the enclosed documents may be construed as a partial denial of your request, you are hereby advised of this Agency's appeal procedures. Any person denied access to information may file an appeal to the NSA FOIA/PA Appeal Authority. If you decide to appeal, you should do so in the manner outlined below. NSA will endeavor to respond within 20 working days of receiving your appeal, absent any unusual circumstances.

- The appeal must be sent via U.S. postal mail, fax or electronic delivery (e-mail) and addressed to:

NSA FOIA/PA Appeal Authority
National Security Agency
9800 Savage Road STE 6932
Fort George G. Meade, MD 20755-6932

The facsimile number is (443)479-3612.

The appropriate email address to submit an appeal is FOIARSC@nsa.gov.

- It must be postmarked or delivered electronically no later than 90 calendar days from the date of this letter. Decisions not appealed within 90 days will not be addressed.
- Please include the case number provided above.
- Please describe with sufficient detail why you believe the denial of the requested information was unwarranted.

You may also contact our NSA FOIA Public Liaison at foialo@nsa.gov for any further assistance and to discuss any aspect of your request. Additionally, you may contact the Office of Government Information Services (OGIS) at the National Archives and Records Administration to inquire about the FOIA mediation services they offer. OGIS contact information is: Office of Information Services, National Archives and Records Administration, 8601 Adelphi Road-OGIS, College Park, MD 20740-6001; e-mail ogis@nara.gov; 202-741-5770; toll free 1-877-684-6448; or fax 202-741-5769.

Sincerely,

D. Thomas
for

SHARON C. LINKOUS
Acting Chief, FOIA/PA Office
NSA Initial Denial Authority

Encls:

a/s

FACTS SUMMARY

NAME (Last)	(First)	(Middle)	FILE
Entriiken	William	NMN	460581

PURPOSE

SOURCE/DATE	FACTS CONSIDERED
PEP/14 Jun 2005	Panel Decision: Discontinue Processing Reason: Inappropriate Behavior 15 Jun 05 (b) (3) -P.L. 86-36 PANEL CLOSED 14 JUN 05

FACTS SUMMARY

NAME	(last)	(first)	(middle)	File Number
	ENTRICKEN	WILLIAM	NMN	460581

PG/SSBI REVIEW

2ND PG, 9 MAY 05
CI-INC, LS-NSR

Previous PG report reviewed, accurate and complete, except:
Criminal activity-
12/02-speeding ticket; paid \$95 fine
posttest-
8/04-p S steals 1 roll of toilet paper every other week from community bathroom because he does not want to purchase his own.
03-p S has stolen 5 \$2 bags of chips from school store; last theft 2/05
early 05-S wrote his initials in wet cement on campus.

OPM File, 2 March 05

ANACI, 27 October 03; no unfavorable information reported

SSBI, 21 March 05

Adequate and favorable, except:
SI-
Speeding tickets 6/02 and 12/04
Villanova-police records indicate that S's roommate had his computer stolen in 10/04 and told police that S knew a lot about computers, but did not know if he was involved.
Confidential source-

C&R:

There are several issues of concern in this file. Subject has a very recent history of petty theft, including stealing toilet paper on a regular basis so he doesn't have to buy it and stealing chips from the school store. In addition, he has had 2 speeding tickets and [redacted] Subject remains inconclusive to the CI phase of the exam. Prior to a 3rd exam, recommend file be reviewed by PEP.

[redacted] 26 May 05
[redacted]

(b) (3) - P.L. 86-36

(b) (7) (D)
(k) (5)

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NATIONAL SECURITY AGENCY / CENTRAL SECURITY SERVICE
ASSOCIATE DIRECTORATE FOR SECURITY AND COUNTERINTELLIGENCE
INVESTIGATIONS / POLYGRAPH DIVISION

REPORT OF POLYGRAPH EXAMINATION

SUBJECT: ENTRICKEN, WILLIAM

FILE #: 460581

SSN: 179-72-7336

DATE OF PG: 9 MAY 2005

DPOB: 6 JUNE 1984
PHILADELPHIA, PACHARACTER: APP-FS 2ND RUN

ORGANIZATION/

RESULTS: CI - INC
LS - NSR

PHONE #:

ROOM #: P28

JOB TITLE: SUMMER INTERN

TIME OF INTERVIEW: 0800

PAY GRADE:

LOCATION

EXAMINER:

APPROVAL

..... Chief, Investigations/Polygraph

(b) (3) -P.L. 86-36

PREDICATION

SUBJECT is an applicant for employment at NSA as a Summer Intern and will require access to NSA sensitive information and spaces. HE was previously polygraphed on 18 March 2005 with inconclusive results.

SCOPE

SUBJECT'S polygraph examination was divided into two phases and contained the following relevant questions with answers as identified:

Phase One

ANSWER: NO

ANSWER: NO

(b) (2)
(b) (3) -P.L. 86-36
(b) (7) (E)
(k) (6)

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MAY 19 2005

(b) (2)
(b) (3) -P.L. 86-36
(b) (7) (E)
(k) (6)

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NAME: ENTRICKEN, WILLIAM
FILE#: 460581

DATE: 9 MAY 2005

[redacted]
[redacted] ANSWER: NO

[redacted]
[redacted] ANSWER: NO

Phase Two

NO [redacted] ANSWER:

[redacted]
[redacted] ANSWER: NO

[redacted]
[redacted] ANSWER: NO

POLICIES

SUBJECT was advised of the following NSA policies and is willing to comply with them:

- | | |
|---------------------------|---|
| NSA/CSS Regulation 30-31 | Foreign Travel |
| NSA/CSS Regulation 120-18 | Association with Foreign Nationals |
| NSA/CSS Regulation 11-12 | Involvement with Illegal Drugs or Narcotics |

RESULTS

An overall analysis revealed multiple inconsistent physiological reactions to the counterintelligence questions. Analysis of the suitability questions revealed no significant physiological reactions.

ENCLOSURE:
1. G1448

DISTRIBUTION:
1. Q23

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NAME: ENTRICKEN, WILLIAM
FILE#: 460581

DATE: 9 MAY 2005

REPORT

The following is a summary of the relevant information provided by SUBJECT.

a. PREVIOUS POLYGRAPH: The Report of Polygraph, dated 18 March 2005, was reviewed with SUBJECT and the following updates and changes were made:

b. CRIMINAL ACTIVITY: In December 2004, SUBJECT received a speeding ticket in Philadelphia for driving 72 mph in a 55 mph. HE appeared in court in April 2005 and received a reduced fine of \$95 (original fine unknown) and no points on HIS license.

During the post-test interview, SUBJECT provided the following information. Since August 2004, SUBJECT has stolen rolls of toilet paper from the community bathroom at Villanova University. SUBJECT resides in a dorm room at Villanova and did not want to purchase HIS own toilet paper. HE estimated that each roll costs approximately \$1 and HE takes a new roll approximately every other week.

Over the last two years, SUBJECT has shoplifted approximately five bags of chips from the Villanova University school store. SUBJECT estimated that each bag costs \$2. The last time HE stole a bag of chips was in January or February 2005.

In early 2005, SUBJECT wrote HIS initials in wet cement on campus at Villanova University. SUBJECT was not caught committing any of the above criminal activities. SUBJECT denied any further involvement with illegal drugs.

No additional pertinent information was obtained during the interview.

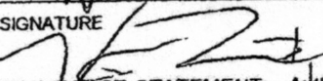
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NSA/CSS POLYGRAPH INTERVIEW CONSENT FORM

1. I voluntarily consent to be interviewed with the aid of a polygraph by an official of the National Security Agency/Central Security Service ("NSA/CSS" or "Agency"). I have received advance notice of this interview and understand the purpose of this interview is to obtain information to assist the Agency in reaching an informed decision regarding my eligibility for access to Sensitive Compartmented Information or other categories of classified information ("security clearance eligibility"). I understand information derived from or pertaining to this interview may also be used to assist in determining my eligibility for initial or continued employment, assignment, or detail for duty with the Agency.
2. I have been informed that:
- a. In accordance with the Fifth Amendment to the U.S. Constitution (Article 31 of the Uniformed Code of Military Justice), I have the right to refrain from saying anything that may tend to incriminate me. I understand that I may consult with counsel during the interview, refuse to answer any question, and may terminate the interview at any time.
 - b. The polygraph interview is voluntary and will only be conducted with my written consent, as evidenced by my signature on this form.
 - c. The interview room contains recording and monitoring equipment (audio, visual, or both, to include a possible two-way mirror) that may be used to record, watch, or listen to the interview.
 - d. No disciplinary action shall be taken against me if I refuse to participate in or complete this polygraph interview and any such refusal will not be documented in personnel records. However, I understand that such refusal will be noted in the Agency's security records and that an investigation may be conducted following my refusal. Moreover, I understand my refusal to be interviewed with the aid of a polygraph or to complete this polygraph interview may prevent the Agency from making a favorable decision regarding my security clearance eligibility or my eligibility for employment, assignment, or detail for duty with the Agency.
3. I acknowledge that I have been informed of the characteristics and nature of the polygraph instrument and interview, including an explanation of the physical operation of the instrument, the procedures to be followed during the interview, and the general area of all questions to be asked during the interview.
4. I acknowledge that I have been informed that information I provide during this polygraph interview as well as information pertaining to this interview will be retained by the Agency and will be protected against unauthorized disclosure in accordance with the federal Privacy Act, 5 U.S.C. § 552a, and other applicable law. I also understand that the Privacy Act authorizes me to submit a request to review records that the Agency may maintain about me. If I choose to submit such a request, I understand that it will be processed in accordance with the Agency's Privacy Act regulations.
5. I understand that information derived from or pertaining to this polygraph interview is principally used by the Agency to help determine my security clearance eligibility. I also understand that information from or pertaining to this interview may be disclosed to Agency personnel on a strict need-to-know basis. I have been informed that, under certain circumstances, information obtained during this polygraph interview may be disclosed outside of the Agency. For instance:
- a. Information from or pertaining to this polygraph interview may be furnished to properly authorized officials of the Department of Defense or other federal agencies or other appropriate entities charged with investigations, evaluations, and adjudications related to security determinations or with responsibilities for inspections or litigation.
 - b. Information regarding actual or possible violations of law – past or future – may be disseminated to appropriate federal, state, and/or local authorities with law enforcement responsibilities.
6. As noted previously, I understand that participation in this polygraph interview is voluntary and that I may choose to end the interview at any time or choose not to participate at all.

(b) (3) - P.L. 86-36

I UNDERSTAND AND AGREE TO THE ABOVE

PRINTED NAME	SOCIAL SECURITY NUMBER	W
William Enten	179-72-7336	
SIGNATURE	DATE	DATE
	5-9-05	9 May 05

PRIVACY ACT STATEMENT: Authority for collecting information is contained in 50 U.S.C. 402 note; 50 U.S.C. 403-3(c)(6); DoD Directive 5210.48; Executive Orders 10450, 10865, 12333, 12958, and 12968; and DCID 6/4. The authority for collecting Social Security Number (SSN) is Executive Order 197. NSA's Blanket Routine Uses found at 58 Fed. Reg. 10,531 (1993) and the specific uses found in GNSA10 apply to this information. Disclosure of requested information is voluntary but refusal to provide requested information, other than SSN, may prevent the Agency from making a favorable decision regarding security clearance eligibility or eligibility for employment, assignment, or detail for duty with the Agency.

SECURITY CLASSIFICATION (if any)

PERSONNEL EVALUATION PANEL DECISION

DATE14 June 2005

SOCIAL SECURITY NUMBER179-72-7336

☒ MR.	NAME (Last)Entriken	(First)William	(MI)
☐ MRS.			
☐ MISS			
☐ MS			
☒ APPLICANT	EMPLOYEE		SITE

TO	ORG	FM	CONTINUE PROCESSING	
☐	ER	☒		
☒	SEC	☐		
☒	PSYCH	☐		
☒	HIR	☐		
☐		☒	NOT SELECTED/DISCONTINUE PROCESSING	
☐		☐	ENCOURAGE TO REAPPLY IN NUMBER MONTHS INDICATED	MONTHS
(Subject to availability of suitable vacancy)				

ACTIONS

PROCESSING			EOD		
PG/RePG			LETTER OF INTENT		
SECURITY INTERVIEW			SPECIAL COUNSELING BY (Org)		
INITIATE BI			PHYSICAL PRIOR TO EOD		
PHYSICAL PRIOR TO EOD			FOLLOW-UP INTERVIEW	BY (Org)	AFTER NO. MONTHS
PSYCH/RePSYCH			EMPLOYEE		
SPECIAL COUNSELING BY (Org)			APPROVED	FOR PCS	
COMPELLING NEED STATEMENT REQUIRED				ADMIN/OPERATIONAL ACCESS AND PCS	
FOLLOW-UP INTERVIEW	BY (Org)	AFTER NO. MONTHS			
RETURN TO PANEL WHEN ACTION COMPLETED					

REMARKS

inappropriate behavior

(b) (3) - P.L. 86-36

SIGNATURE

PERSONNEL PRIVILEGED INFORMATION

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NATIONAL SECURITY AGENCY / CENTRAL SECURITY SERVICE
ASSOCIATE DIRECTORATE FOR SECURITY AND COUNTERINTELLIGENCE
INVESTIGATIONS / POLYGRAPH DIVISION

REPORT OF POLYGRAPH EXAMINATION

(b) (3) -P.L. 86-36

SUBJECT: ENTRIEN, WILLIAM
JR.

FILE #: 460581

SSN: 179-72-7336

DATE OF PG: 18 MARCH 2005

DPOB: 06 JUNE 1984,
PHILADELPHIA, PA

CHARACTER: APPLICANT

ORGANIZATION/

RESULTS: CI-INC
LS-INC

PHONE #:

ROOM #: P12

JOB TITLE: SUMMER INTERN

TIME OF INTERVIEW: 1245

PAY GRADE:

LOCATION: FANX I

EXAMINER:

APPROVAL [REDACTED]
Chief, Investigations/PolygraphPREDICATION

SUBJECT is an applicant for employment at NSA as a Summer Intern and will require access to NSA sensitive information and spaces. HE has no friends or relatives employed by the NSA. HE found out about this position from HIS teachers in the Navy.

SCOPE

SUBJECT'S polygraph examination was divided into two phases and contained the following relevant questions with answers as identified:

Phase One[REDACTED]
ANSWER: NO

[REDACTED] ANSWER: NO

(b) (2)
(b) (3) -P.L. 86-36
(b) (7) (E)
(k) (6)

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MAR 31 2005

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(b) (2)
(b) (3) -P.L. 86-36
(b) (7) (E)
(k) (6)

NAME: ENTRIKEN, WILLIAM JR
FILE#: 460581

DATE: 18 MARCH 2005

[REDACTED]
[REDACTED] ANSWER: NO

[REDACTED]
[REDACTED] ANSWER: NO

Phase Two

[REDACTED] ANSWER: NO

[REDACTED]
[REDACTED] ANSWER: NO

[REDACTED]
[REDACTED] ANSWER: NO

Additional questions utilized during this phase:

[REDACTED] ANSWER: NO

[REDACTED]
[REDACTED] ANSWER: NO

[REDACTED]
[REDACTED] ANSWER: NO

POLICIES

SUBJECT was advised of the following NSA policies and is willing to comply with them:

NSA/CSS Regulation 30-31	Foreign Travel
NSA/CSS Regulation 120-18	Association with Foreign Nationals
NSA/CSS Regulation 11-12	Involvement with Illegal Drugs or Narcotics

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NAME: ENTRIKEN, WILLIAM JR
FILE#: 460581

DATE: 18 MARCH 2005

RESULTS

An overall analysis revealed multiple inconsistent physiological reactions to the relevant questions.

ENCLOSURE:

1. G1448

DISTRIBUTION:

1. Q23

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NAME: ENTRIKEN, WILLIAM JR
FILE#: 460581

DATE: 18 MARCH 2005

REPORT

The following is a summary of the relevant information provided by SUBJECT.

a. BIRTH: SUBJECT'S date and place of birth and citizenship status were verified by sighting HIS Pennsylvania birth certificate, number: 0679290-84.

SUBJECT stated that HIS name is William Entriken, Jr. HE stated that HE never uses the Junior part of HIS name and always abbreviates HIS first name as Will, except on official documents. SUBJECT listed Will on HIS SF-86 security forms submitted to NSA because HE did not consider it an official document. HE did note Junior on the SF-86. SUBJECT denied that HE has used any other names.

b. EMPLOYMENT: SUBJECT'S periods of unemployment were due to attending school full-time. SUBJECT denied any problems with regard to HIS employment with the U.S. Navy.

c. SPEEDING TICKET: In July 2002, the New Jersey State Police stopped SUBJECT for speeding on Route 95. HE was fined a total of \$250 for traveling 85mph in a 55mph or 65mph zone. On 24 December 2004, the Pennsylvania State Police stopped SUBJECT for speeding near the Philadelphia Airport. The Police noted that HE was traveling 72mph in a 55mph zone. SUBJECT is attending Philadelphia Traffic Court in mid to late April 2005 to contest the ticket. SUBJECT does not believe HE was traveling that fast, and doesn't recall how fast HE was traveling.

d. POST TEST: After administering three suitability polygrams, SUBJECT was asked to explain HIS inconsistent physiological reactions. SUBJECT explained that HIS friend Fred Weiner died in November 2002 in HIS home in Philadelphia, PA. Weiner died in his sleep and because of his Jewish religion was buried quickly without an autopsy. SUBJECT stated that there was "no foul play" involved as far as HE knew. A week or two before Weiner died, he had shown SUBJECT that he was growing marijuana in his closet of his parent's home. Weiner told HIM that he was going to harvest the marijuana in a week. At that time, SUBJECT thought about using the marijuana once Weiner harvested it. SUBJECT stated that HE doesn't use marijuana because of HIS friend's death. SUBJECT denied that HE has ever been involved in using, buying, selling, growing or manufacturing any illegal drugs.

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~~UNCLASSIFIED//FOR OFFICIAL USE ONLY~~

NAME: ENTRIKEN, WILLIAM JR
FILE#: 460581

DATE: 18 MARCH 2005

No additional pertinent information was obtained during the interview.

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NSA/CSS POLYGRAPH INTERVIEW CONSENT FORM

1. I voluntarily consent to be interviewed with the aid of a polygraph by an official of the National Security Agency/Central Security Service ("NSA/CSS" or "Agency"). I have received advance notice of this interview and understand the purpose of this interview is to obtain information to assist the Agency in reaching an informed decision regarding my eligibility for access to Sensitive Compartmented Information or other categories of classified information ("security clearance eligibility"). I understand information derived from or pertaining to this interview may also be used to assist in determining my eligibility for initial or continued employment, assignment, or detail for duty with the Agency.

2. I have been informed that:

- a. In accordance with the Fifth Amendment to the U.S. Constitution (Article 31 of the Uniformed Code of Military Justice), I have the right to refrain from saying anything that may tend to incriminate me. I understand that I may consult with counsel during the interview, refuse to answer any question, and may terminate the interview at any time.
- b. The polygraph interview is voluntary and will only be conducted with my written consent, as evidenced by my signature on this form.
- c. The interview room contains recording and monitoring equipment (audio, visual, or both, to include a possible two-way mirror) that may be used to record, watch, or listen to the interview.
- d. No disciplinary action shall be taken against me if I refuse to participate in or complete this polygraph interview and any such refusal will not be documented in personnel records. However, I understand that such refusal will be noted in the Agency's security records and that an investigation may be conducted following my refusal. Moreover, I understand my refusal to be interviewed with the aid of a polygraph or to complete this polygraph interview may prevent the Agency from making a favorable decision regarding my security clearance eligibility or my eligibility for employment, assignment, or detail for duty with the Agency.

3. I acknowledge that I have been informed of the characteristics and nature of the polygraph instrument and interview, including an explanation of the physical operation of the instrument, the procedures to be followed during the interview, and the general area of all questions to be asked during the interview.

4. I acknowledge that I have been informed that information I provide during this polygraph interview as well as information pertaining to this interview will be retained by the Agency and will be protected against unauthorized disclosure in accordance with the federal Privacy Act, 5 U.S.C. § 552a, and other applicable law. I also understand that the Privacy Act authorizes me to submit a request to review records that the Agency may maintain about me. If I choose to submit such a request, I understand that it will be processed in accordance with the Agency's Privacy Act regulations.

5. I understand that information derived from or pertaining to this polygraph interview is principally used by the Agency to help determine my security clearance eligibility. I also understand that information from or pertaining to this interview may be disclosed to Agency personnel on a strict need-to-know basis. I have been informed that, under certain circumstances, information obtained during this polygraph interview may be disclosed outside of the Agency. For instance:

- a. Information from or pertaining to this polygraph interview may be furnished to properly authorized officials of the Department of Defense or other federal agencies or other appropriate entities charged with investigations, evaluations, and adjudications related to security determinations or with responsibilities for inspections or litigation.
- b. Information regarding actual or possible violations of law – past or future – may be disseminated to appropriate federal, state, and/or local authorities with law enforcement responsibilities.

6. As noted previously, I understand that participation in this polygraph interview is voluntary and that I may choose to end the interview at any time or choose not to participate at all.

(b) (3) - P.L. 86-36

I UNDERSTAND AND AGREE TO THE ABOVE

PRINTED NAME <i>William Estrehan</i>	SOCIAL SECURITY NUMBER <i>179-72-7336</i>	WITN
SIGNATURE <i>[Signature]</i>	DATE <i>2005-03-16</i>	DATE <i>3/18/2005</i>

PRIVACY ACT STATEMENT: Authority for collecting information is contained in 50 U.S.C. 402 note; 50 U.S.C. 403-3(c)(6); DoD Directive 5210.48; Executive Orders 10450, 10865, 12333, 12958, and 12968; and DCID 6/4. The authority for collecting Social Security Number (SSN) is Executive Order 9397. NSA's Blanket Routine Uses found at 58 Fed. Reg. 10,531 (1993) and the specific uses found in GNSA10 apply to this information. Disclosure of requested information is voluntary but refusal to provide requested information, other than SSN, may prevent the Agency from making a favorable decision regarding security clearance eligibility or eligibility for employment, assignment, or detail for duty with the Agency.